SPRINT ENGAGEMENT AGREEMENT

(Contrat de Prestation de Services par Sprints)

SERVICE PROVIDER	CLIENT
NativeSquare SAS	**Brain Analytics Ltd**
Registered in Paris, France	20-22 Wenlock Road, London N1 7GU, UK
SIRET: 995 089 851 00019	Reg. number: 11161476
Represented by: Maxime Gey, Founder	Represented by: Remi Vincent, COO
(hereinafter "the Provider")	*(hereinafter "the Client")*

Collectively referred to as "the Parties" and individually as a "Party."

Article 1 — Purpose

This Agreement sets forth the terms and conditions under which the Provider shall perform software development and related digital services for the Client, organized in successive two-week work periods ("Sprints"). Each Sprint is scoped through a Statement of Work ("SOW") agreed upon by both Parties prior to commencement.

Article 2 — Sprint Structure and Engagement Model

2.1 Sprint Duration

Each Sprint consists of ten (10) business days. The Sprint begins on the business day on which both Double Key conditions (Article 2.2) are satisfied and ends ten (10) business days thereafter.

2.2 Double Key Start

A Sprint shall only commence once both of the following conditions have been met (the "Double Key"):

- The Sprint fee has been received in full in the Provider's account; and
- The Sprint SOW has been approved in writing by both Parties.

Until both conditions are satisfied, the two-week Sprint timeline does not begin. No catch-up work or pro-rated adjustments shall be owed for time lost due to delays in meeting either condition.

2.3 Successive Sprints

Each Sprint is engaged and invoiced individually. Completion of one Sprint does not automatically initiate the next. A new Sprint begins only when the Double Key conditions are met again for that Sprint.

2.4 Statement of Work (SOW)

Prior to the commencement of each Sprint, the Provider shall prepare and submit to the Client a detailed SOW that includes:

- A description of each deliverable and its functional requirements;
- Any assumptions, dependencies, or known technical risks;
- The target staging environment for delivery.

The SOW must be signed by both Parties prior to the start of the Sprint. Signature of the SOW constitutes acceptance of its scope and assumptions.

Article 3 — Pricing and Payment Terms

3.1 Sprint Rate

The fee for each Sprint is two thousand five hundred euros (€2,500) excluding VAT.

3.2 Payment Schedule

The Provider shall issue an invoice for each Sprint. In accordance with the Double Key principle (Article 2.2), no work shall commence until the invoice has been paid in full and the SOW has been signed.

3.3 VAT

All amounts stated in this Agreement are exclusive of VAT. Applicable VAT shall be added to each invoice in accordance with the legislation in force at the time of invoicing.

Article 4 — Provider Obligations

4.1 Delivery Commitment

The Provider commits to delivering the functional requirements listed in the SOW to the designated staging environment by the end of each Sprint, in a state suitable for the Client's review and testing.

4.2 Professional Standards

The Provider shall perform the Services with the care, skill, and diligence expected of a qualified professional in the software development industry. The Provider's obligation is an obligation of result (obligation de résultat) with respect to the deliverables described in the SOW, subject to the scope adjustment mechanism set forth in Articles 4.3 and 6.

4.3 Mid-Sprint Checkpoint

The Provider shall conduct a mid-Sprint checkpoint at the end of the fifth (5th) business day of each Sprint to report on progress, flag any blockers or feasibility concerns, and propose scope adjustments if necessary, in accordance with the Scope Change Procedure set forth in Article 6.

4.4 Communication

The Provider shall maintain regular communication with the Client throughout each Sprint via the agreed-upon communication channels (e.g., Slack, email, video calls). The Provider shall notify the Client promptly of any material impediment to the timely completion of a deliverable.

Article 5 — Scope Feasibility and Risk Classification

This article constitutes a material term of this Agreement and governs the allocation of feasibility risk between the Parties.

5.1 Inherent Scoping Risk

The Parties acknowledge that software development involves inherent scoping risk: functional requirements defined in the SOW are based on the information available at the time of scoping and may be affected by technical constraints, third-party limitations, or complexity that only becomes apparent during implementation.

5.2 Mid-Sprint Safety Valve

The mid-Sprint checkpoint (Article 4.3) serves as the primary mechanism for managing scoping risk. If the Provider identifies a blocker or feasibility concern affecting any deliverable, the Provider shall raise it at or before the mid-Sprint checkpoint and invoke the Scope Change Procedure (Article 6). Provided the Provider has (a) flagged the concern in a timely manner and (b) followed the Scope Change Procedure, the adjusted scope shall replace the original SOW commitment and the Provider's failure to deliver the originally scoped item shall not constitute a breach of this Agreement.

Article 6 — Scope Change Procedure

6.1 Trigger

A Scope Change may be initiated by either Party when:

- A deliverable is determined to be infeasible or materially more complex than anticipated;
- A deliverable encounters an unforeseen blocking constraint;
- The Client requests a change to the SOW priorities;
- External dependencies (APIs, third-party services, regulatory changes) materially impact the scope.

6.2 Procedure

Upon triggering a Scope Change, the Provider shall deliver to the Client a written Scope Change Notice (by email or the agreed communication channel) containing: (i) a description of the issue, (ii) a proposed resolution (substitution of equivalent-effort work, deferral to the next Sprint, or scope reduction), and (iii) any impact on other deliverables in the current Sprint.

6.3 Resolution

The Client shall respond to the Scope Change Notice within two (2) business days. The Parties shall agree on one of the following resolutions:

- Swap: Replace the affected item with alternative work of equivalent effort;
- Defer: Carry the item forward to the next Sprint with an updated scope assessment;
- Drop: Remove the item from the SOW with no additional charge or credit.
- Extend: If the item requires effort beyond the current Sprint, the Parties may agree in writing to continue the work in a subsequent Sprint at the rate specified in Article 3.

If the Client fails to respond within two (2) business days, the Provider may proceed with its proposed resolution.

6.4 Deadlock

If the Client rejects all proposed resolutions and the Parties are unable to agree on an alternative within two (2) additional business days, the Provider shall be released from its obligation to deliver the affected item for the current Sprint. The affected item shall be removed from the SOW with no additional charge or credit. This release does not affect the Provider’s obligations with respect to the remaining deliverables in the SOW.

6.5 Documentation

All Scope Changes shall be documented in writing via email or the agreed communication channel (e.g., Slack) and shall constitute an amendment to the applicable SOW. The cumulative effect of Scope Changes shall not alter the Sprint fee unless expressly agreed by both Parties.

Article 7 — Acceptance and Remedies

7.1 Sprint Demo

At the conclusion of each Sprint, the Provider shall deploy all completed deliverables to the designated staging environment and conduct a Sprint Demo to showcase the completed work against the functional requirements defined in the SOW.

7.2 Review Period

Following the Sprint Demo, the Client shall have three (3) business days to test the deliverables against the agreed functional requirements (“Review Period”).

7.3 Acceptance Standard

Acceptance is based solely on whether the deliverables materially conform to the functional requirements described in the SOW. Acceptance is not conditioned on subjective satisfaction, business outcomes, or criteria not specified in the SOW.

7.4 Rejection and Remediation

If a deliverable does not materially conform to the functional requirements described in the SOW, the Client shall provide a written description of the non-conformance within the Review Period.

7.5 Bug Remediation Window

Upon receipt of a valid non-conformance report (i.e., a clear deviation from the functional requirements in the SOW), the Provider shall have five (5) business days following the end of the Review Period to correct the issue at no additional cost (“Remediation Window”). Issues that fall outside the functional requirements defined in the SOW, including feature requests, design preferences, or requirements not specified in the SOW, are not eligible for the Remediation Window and shall be treated as new scope for a subsequent Sprint.

7.6 Deemed Acceptance

If the Client does not provide written feedback within the Review Period, the deliverables shall be deemed accepted.

Article 8 — Testing and Device Limitations

8.1 Testing Environment

The Provider shall make best efforts to ensure compatibility of the deliverables across a wide range of modern iOS and Android versions, as well as current major web browsers where applicable.

8.2 Hardware Limitation

Acceptance of functional requirements is based on successful performance on the Provider’s internal team testing devices. The Provider shall not be held responsible for defects or incompatibilities arising on devices or configurations not available to the Provider during the Sprint, unless specific device support was explicitly listed as a functional requirement in the SOW.

Article 9 — Client Obligations

The Client shall:

- Provide timely access to all systems, credentials, APIs, documentation, and information necessary for the Provider to perform the Services;
- Designate a primary point of contact with authority to approve SOWs, Scope Changes, and deliverables;
- Respond to the Provider's requests for clarification or decisions within two (2) business days;
- Review and provide feedback on deliverables within the Review Period defined in Article 7.

Delays caused by the Client's failure to meet these obligations may result in a corresponding extension of Sprint timelines at the Provider's discretion, without additional cost to the Client but without giving rise to any claim for damages or penalty against the Provider.

Article 10 — Intellectual Property

10.1 Assignment of Work Product

As the Client pays for each Sprint in advance, all intellectual property rights in the deliverables produced during that Sprint — including source code, documentation, and designs — are immediately and directly attributed to the Client upon completion of the Sprint, to the extent such rights are assignable under applicable law.

10.2 Delivery of Work Product

Upon the Client's request, the Provider shall transfer the deliverables (including source code) to the Client's environment (e.g., GitHub repository, hosting platform) within five (5) business days of the request. If the Client's environment is not technically ready to receive the deliverables, the Parties shall agree on an adjusted timeline.

10.3 Provider Tools and Pre-Existing IP

The Provider retains all rights in its pre-existing tools, libraries, frameworks, and methodologies. To the extent any such materials are incorporated into the deliverables, the Provider grants the Client a non-exclusive, perpetual, royalty-free license to use, modify, and distribute such materials as part of the delivered work. Each SOW shall include a list of any significant pre-existing NativeSquare IP or third-party components expected to be incorporated into the Sprint deliverables, so that ownership boundaries are clear. Standard open-source dependencies and common development tools are excluded from this listing requirement.

10.4 Portfolio Rights

The Provider may reference the project in the Provider's portfolio, website, case studies, and marketing materials, subject to the Client's prior written approval. Such approval shall not be unreasonably withheld. The Provider shall submit a description of the intended usage to the Client for review before any public reference is made.

Article 11 — Confidentiality

Each Party agrees to keep confidential all non-public information received from the other Party in connection with this Agreement, including but not limited to source code, technical architecture, business plans, client data, and commercial terms ("Confidential Information"). This obligation shall survive termination of this Agreement for a period of two (2) years.

Confidential Information does not include information that: (a) is or becomes publicly available through no fault of the receiving Party; (b) was already in the possession of the receiving Party prior to disclosure; (c) is independently developed without reference to the Confidential Information; or (d) is required to be disclosed by law or legal process, provided the receiving Party gives prompt notice.

For the avoidance of doubt, this confidentiality obligation does not restrict either Party from working on projects of a similar nature for other clients, provided that the other Party's Confidential Information is not used or disclosed.

Article 12 — Data Protection

The Parties acknowledge that the performance of the Services may involve the processing of personal data, including but not limited to player personal information, medical data, and contract details. Each Party shall comply with all applicable data protection legislation, including the UK General Data Protection Regulation (UK GDPR) and the EU General Data Protection Regulation (EU GDPR), to the extent applicable.

Where the Provider processes personal data on behalf of the Client, the Provider acts as a data processor and the Client acts as the data controller. The Parties shall execute a separate Data Processing Agreement (DPA) before any personal data is transferred to or accessed by the Provider. Until such DPA is in place, the Provider shall only work with anonymised or mock data.

Article 13 — Limitation of Liability

The Provider's total aggregate liability under this Agreement, whether in contract, tort, or otherwise, shall not exceed the total fees paid by the Client under this Agreement during the twelve (12) months preceding the event giving rise to the claim. In no event shall either Party be liable for indirect, incidental, special, or consequential damages, including but not limited to loss of profits, loss of data, or loss of business opportunity. The limitations set forth in this Article shall not apply to: (a) liability arising from a Party's gross negligence or wilful misconduct, or (b) liability arising from a Party's infringement of the other Party's intellectual property rights.

Article 14 — Term and Termination

14.1 Term

This Agreement takes effect upon the date of signature by both Parties and shall remain in force indefinitely until terminated in accordance with this Article. Each SOW executed under this Agreement shall expressly reference this Agreement and shall be governed by its terms. The execution of a new SOW does not require re-signing this Agreement.

14.2 Termination

Either Party may terminate this Agreement at any time by providing written notice. Upon termination, the Provider shall complete the current paid Sprint in its entirety as per the signed SOW. Fees already paid are non-refundable, except in the case of termination due to the Provider's material breach, in which case the Provider shall refund a pro rata portion of

the Sprint fee corresponding to the unperformed portion of the Sprint. No further Sprints shall be invoiced or performed following the completion of the active Sprint.

Article 15 — Force Majeure

Neither Party shall be liable for failure to perform its obligations under this Agreement to the extent that such failure is caused by circumstances beyond its reasonable control, including but not limited to acts of God, war, terrorism, pandemics, government actions, natural disasters, or widespread infrastructure failures. The affected Party shall notify the other Party promptly and take reasonable steps to mitigate the impact. If a force majeure event persists for more than thirty (30) calendar days, either Party may terminate this Agreement without penalty.

Article 16 — Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of France. Any dispute arising out of or in connection with this Agreement shall be subject to the exclusive jurisdiction of the competent courts of Paris, France.

Article 17 — Miscellaneous

17.1 Entire Agreement

This Agreement constitutes the master agreement between the Parties governing all Sprint engagements. Each SOW executed hereunder forms an integral part of this Agreement and is governed by its terms. Together, this Agreement and all SOWs executed hereunder constitute the entire agreement between the Parties with respect to the subject matter and supersede all prior negotiations, representations, and agreements.

17.2 Amendments

No amendment to this Agreement shall be effective unless made in writing and signed by both Parties. Scope Changes under Article 6 constitute amendments to the applicable SOW only.

17.3 Assignment

Neither Party may assign this Agreement without the prior written consent of the other Party, except in connection with a merger, acquisition, or sale of all or substantially all of its assets.

Signatures

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date last signed below.

For NativeSquare SAS	For Brain Analytics Ltd
Name: Maxime Gey Title: Founder Date: 03/19/2026 Signature:	Name: Remi Vincent Title: COO Date: 3/20/2026 Signature: DocuSigned by: Remi Vincent 290B44A81A024AF...